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No. 11 - Taylor Norris v. Patrick M. Doe, et al.

Defendants Trader Joe's, Michael Rainer, and Patrick Moya's Demurrers to Plaintiff Taylor Norris's Complaint

Defendants Trader Joe's, Michael Rainer, and Patrick Moya filed separate demurrers challenging various causes of action in Plaintiff's complaint.

In the complaint, Plaintiff alleges that Defendant Moya, a Trader Joe's employee, sexually assaulted her when she was shopping in the store. Plaintiff alleges Defendant Rainer was Moya's supervisor/manager at the time of the incident. Plaintiff brings causes of action for (1) intentional infliction of emotional distress; (2) negligence; (3) assault; (4) battery; (5) violation of Civil Code §§ 51, et seq., 52.1; (6) violation of Business and Professions code § 17200; and (7) violation of the Consumer Legal Remedies Act.

Defendants Trader Joes and Rainer challenge all seven causes of action. Defendant Moya challenges only the second, sixth, and seventh causes of action. Because Defendants' demurrers contain significant overlap, the Court will address them together.

Request for Judicial Notice

Defendant Moya requests the Court take judicial notice of Plaintiff's complaint and accompanying proof of service of the complaint. These are court records and subject to judicial notice under Evidence Code section 452(d).

Moya's request for judicial notice is granted.

Uncertainty

Defendants demur to Plaintiff's causes of action on the grounds that they are uncertain. "A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures." (*Khoury v. Maly's of Cal., Inc.* (1993) 14 Cal.App.4th 612, 616.) " ' "Demurrers for uncertainty are disfavored, and are granted only if the pleading is so incomprehensible that a defendant cannot reasonably respond." ' ' " (*A.J. Fistes Corp. v. GDL Best Contractors, Inc.* (2019) 38 Cal.App.5th 677, 695, alterations omitted.) The complaint must sufficiently apprise defendants of the claims against them. (*Ibid.*) The Court finds that the complaint clears that low bar in apprising Defendants of all claims brought against them.

Theories of Liability

A. Vicarious Liability

Trader Joe's and Rainer challenge Plaintiff's allegations that they are liable for several causes of action on the grounds that they did not commit the underlying sexual assault on which the complaint is based.

Specifically, Trader Joes argues that it cannot be held vicariously liable for the first, third, fourth, fifth, and sixth causes of action because the sexual assault allegedly committed by Defendant Moya fell outside the scope of his employment. The Court agrees. "The rule of respondeat superior is familiar and simply stated: an employer is vicariously liable for the torts of its employees committed within the scope of the employment." (Lisa M. v. Henry Mayo Newhall Memorial Hospital (1995) 12 Cal.4th 291, 296 (Lisa M.).) The key issue is whether the employee's conduct was "within the scope" of the employment or agency. "[A]n intentional tort gives rise to respondeat superior liability only if it was engendered by the employment." (Id., at p. 298.)

Alma W. v. Oakland Unified School Dist. (1981) 123 Cal.App.3d 133 is instructive here. In Alma W., a school custodian sexually assaulted a student. The appellate court affirmed the trial court's sustaining of a demurrer as to the student's claim for assault alleged against the school district. The appellate court rejected the contention that the assault was within the scope of the custodian's employment, finding that the school was not liable under a theory of respondeat superior (codified at Government Code section 815.2 for public employers). (Id., at p. 144.) It reasoned: "If an employee's tort is personal in nature, mere presence at the place of employment and attendance to occupational duties prior or subsequent to the offense will not give rise to a cause of action against the employer under the doctrine of respondeat superior." (Id., at p. 140.) The Court further found that the assault was not "a reasonably foreseeable consequence of the educational enterprise." (Id. at p. 144.)

Here, the complaint alleges that Moya, a Trader Joe's employee, sexually attacked Plaintiff while she was shopping in the store. (Compl., ¶ 5.) He allegedly placed his hands around her waist, kissed her cheek, and whispered sexually explicit comments in her ear, among other things. (Ibid.) Similar to the custodian in the Alma W. case, Moya's acts did not arise from the performance of his job-related duties—his tort was personal in nature and simply occurred at his place of employment. In addition, Plaintiff makes no allegations that Trader's Joe's should have foreseen the assault. Thus, Plaintiff alleges insufficient facts to support a theory of liability under respondeat superior against Trader Joe's.

B. Direct Liability

However, the Court finds that Plaintiff does allege sufficient facts that support Trader Joe's liability under a theory of ratification. "A principal may implicitly 'ratify' the conduct of an agent—and thereby become liable for that conduct under the law—by accepting the benefits of that conduct with 'knowledge of the material facts.' " (Fischl v. Pacific Life Ins. Co. (2023) 94 Cal.App.5th 108, 129.) "As an alternative to respondeat superior, an employer may be liable for an employee's act where the employer subsequently ratifies the originally unauthorized tort." (Samantha B. v. Aurora Vista Del Mar, LLC (2022) 77 Cal.App.5th 85, 109 [finding hospital ratified employee's acts of sexual assault by failing to undertake investigation].)

When liberally construed in Plaintiffs' favor, the complaint adequately alleges facts constituting ratification. " 'Ratification is a question of fact. The burden of proving ratification is upon the party asserting its existence. But ratification may be proved by circumstantial as well as direct evidence. Anything which convincingly shows the intention of the principal to adopt or approve the act in question is sufficient. [Citation.] It may also be shown by implication.' " (StreetScenes v. ITC Entertainment Group, Inc. (2002) 103 Cal.App.4th 233, 242.)

Plaintiff alleges facts supporting ratification. "The failure to investigate or respond to charges that an employee has committed an intentional tort or the failure to discharge the employee may be evidence of ratification. [Citation.] Generally, ratification is a question of fact." (Samantha B., supra, 77 Cal.App.5th at p. 109; accord Ratcliff v. The Roman Catholic

Archbishop of Los Angeles (2022) 79 Cal.App.5th 982, 1003 [“Evidence of the ratification may come in many forms, for example where an employer fails to terminate, investigate, or respond to charges that an employee has committed an intentional tort.”].)

Plaintiff alleges, “[she] is informed and believes that Defendants encouraged and condoned sexually and racially harassing conduct.” (Compl., ¶ 7.) Further, “[she] reported what had occurred and her injuries. Plaintiff is informed and believes that Defendants and DOES 1-100, learned of these events and did nothing. Defendants refused to investigate or prevent the unsafe, hostile environment.” (Id., ¶ 8.) On demurrer, these allegations suffice to make ratification a question of fact.

However, the Court is not convinced that Plaintiff states sufficient facts to hold Defendant Rainer liable under a theory of ratification. Plaintiff provides no legal authority stating that a mere supervisor can be held liable under a ratification theory.

C. Conspiracy

Plaintiff’s allegations of conspiracy are insufficient to support liability against Rainer. “Civil conspiracy . . . is a legal doctrine that imposes liability on persons who, although not actually committing a tort themselves, share with the immediate tortfeasors a common plan or design in its perpetration.” (City of Industry v. City of Fillmore (2011) 198 Cal.App.4th 191, 211-12, cleaned up.) “The elements of a civil conspiracy are (1) the formation of a group of two or more persons who agreed to a common plan or design to commit a tortious act; (2) a wrongful act committed pursuant to the agreement; and (3) resulting damages.” (Id. at 212.)

There are no facts demonstrating that Rainer and Moya formed a group and mutually agreed that Moya would engage in sexual misconduct. The complaint merely states “Plaintiff is informed and thereon alleges that the Defendants knowingly and willfully conspired and agreed among themselves to do the acts herein alleged. The Defendants did these acts pursuant to and in furtherance of their conspiracy. The Defendants furthered their conspiracy by cooperation, lending aid, encouragement, ratification and adopting the acts of each other.” (Compl., ¶ 12.) This is insufficient.

Therefore, because there are insufficient facts to support liability against Rainer for Moya’s sexual misconduct, Rainer’s demurrer as to the third cause of action for assault and the fourth cause of action for battery is sustained with leave to amend.

Sufficiency of Allegations

A. First Cause of Action: Intentional Infliction of Emotional Distress

Trader Joe’s and Rainer demur to the first cause of action for intentional infliction of emotional distress.

Plaintiff alleges sufficient facts for this cause of action. Its elements are “(1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff’s suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant’s outrageous conduct.” (Hughes v. Pair (2009) 46 Cal.4th 1035, 1050.)

Defendants argue that Plaintiff does not sufficiently allege the first element of extreme and outrageous conduct. The Court disagrees. Plaintiff alleges Defendants permitted and condoned an unsafe environment, and encouraged sexually and racially harassing conduct. (Compl., ¶ 7.) Further, when Defendants learned of the incident, they allegedly did nothing and refused to investigate it. (Id., ¶ 8.) The Court cannot conclude as a matter of law that this conduct is not extreme and outrageous. Thus, these allegations are sufficient to state a claim for intentional infliction of emotional distress at the pleading stage.

Trader Joe's and Rainer's demurrers as to this cause of action are overruled.

B. Second Cause of Action: Negligence

Trader Joe's, Rainer, and Moya demur to this cause of action.

Plaintiff alleges sufficient facts for this cause of action. The Court notes that while Trader Joe's and Rainer's demurrer label this cause of action "negligent hiring and supervision," the complaint refers to it as "negligence." "If the complaint states a cause of action under any theory, regardless of the title under which the factual basis for relief is stated, that aspect of the complaint is good against a demurrer." (Quelimane Co. v. Stewart Title Guaranty Co. (1998) 19 Cal.4th 26, 38.) In order to state a claim for negligence, Plaintiff must allege the elements of (1) "the existence of a legal duty of care," (2) "breach of that duty," and (3) "proximate cause resulting in an injury." (McIntyre v. Colonies-Pacific, LLC (2014) 228 Cal.App.4th 664, 671.) The Court will analyze this as a general negligence claim.

Liberally construed, Plaintiff's allegations support a claim of negligence against Trader Joe's but not against the individual Defendants. She alleges generally that all Defendants had a "duty to maintain a store environment free of discrimination, harassment, abuse, [and] intimidation." (Compl., ¶ 24.) She alleges they breached this duty (id., ¶ 24), which caused damages (id., ¶¶ 27-28). She also alleges that Defendants failed to investigate the incident despite Trader Joe's internal policies to do so. (Id., ¶ 22.) No legal basis is provided, though, regarding why individual employees, in contrast to their employer, owe a duty to maintain the store environment in a particular manner.

Trader Joe's demurrer as to this cause of action is overruled. Rainer and Moya's demurrers as to this cause of action are sustained with leave to amend.

C. Third and Fourth Causes of Action: Assault and Battery

Defendant Trader Joe's challenges Plaintiff's claims for assault and battery on the grounds that it cannot be held liable for the sexual misconduct of its employees. As discussed above, the Court finds that Plaintiff states sufficient facts to allege liability via ratification as to Trader Joe's.

Trader Joe's demurrer as to these causes of action is overruled.

D. Fifth Cause of Action: Violation of Civil Code §§ 51, et seq., 52.1 (Unruh and Bane Civil Rights Act)

Trader Joe's and Rainer demur to this cause of action.

Trader Joe's demurs to this cause of action on the ground that Plaintiff cannot support a theory of ratification. As discussed above, the Court finds to the contrary.

Trader Joe's demurrer as to this cause of action is overruled.

The elements of a claim for violations of the Tom Bane Civil Rights Act are (1) the defendant interfered with or attempted to interfere with the plaintiff's constitutional or statutory rights by threatening or committing violent acts; (2) the plaintiff reasonably believed that if he or she exercised his or her constitutional rights the defendant would commit violence against him or her or his or her property, or the defendant injured the plaintiff or his or her property to prevent him or her from

exercising his or her constitutional rights or retaliated against the plaintiff for having exercised his or her constitutional rights; (3) the plaintiff was harmed; and (4) the defendant's conduct was a substantial factor in causing the plaintiff's harm. (Civ. Code § 52.1.)

Plaintiff does not allege sufficient facts to state a claim for violation of the Bane Civil Rights Act against Rainer. Plaintiff does not adequately allege the first element of threatening Plaintiff's rights or the second element of reasonable belief.

Rainer's demurrer as to this cause of action is sustained with leave to amend.

E. Sixth Cause of Action: Violation of Business and Professions Code § 17200

Trader Joe's, Rainer, and Moya demur to this cause of action.

"To bring a UCL claim, a plaintiff must show either an (1) 'unlawful, unfair, or fraudulent business act or practice,' or (2) 'unfair, deceptive, untrue or misleading advertising.' " (Adhav v. Midway Rent A Car, Inc. (2019) 37 Cal.App.5th 954, 970.) " 'Unlawful' conduct includes any business practice or act forbidden by local, state or federal statutes or by regulations or case law. [Citation]." (Ibid.) "A UCL action is an equitable action by means of which a plaintiff may recover money or property obtained from the plaintiff or persons represented by the plaintiff through unfair or unlawful business practices. It is not an all-purpose substitute for a tort or contract action." (Cortez v. Purolator Air Filtration Products Co. (2000) 23 Cal.4th 163, 173.)

Plaintiff fails to allege sufficient facts for this cause of action as alleged against Trader Joe's, Rainer, and Moya. In the complaint, Plaintiff alleges that the unlawful business practice at issue is the sexual battery committed by Moya. The complaint cites Civil Code section 1708.5, which imposes liability on the perpetrator of a sexual battery. (Compl., ¶ 49.) As discussed above, there are insufficient facts demonstrating Rainer is vicariously or directly liable for the battery. Thus, this claim necessarily fails as to him.

For Trader Joe's and Moya, the Court fails to see how an individual employee's sexual battery can be pled as a business practice at all, even if Moya was acting as an employee in the store when the battery occurred. Plaintiff fails to allege that the sexual battery is an unlawful business practice, nor provide supporting authority for this in her opposition brief. While the Court agrees that the unfair competition law " 'borrows' violations from other laws by making them independently actionable as unfair competitive practices," (Korea Supply Co. v. Lockheed Martin Corp. (2003) 29 Cal.4th 1134, 1143), the Court fails to see how violation of a statute prohibiting battery qualifies as an unfair or unlawful business act or practice.

Trader Joe's, Rainer, and Moya's demurrers as to this cause of action are sustained with leave to amend.

F. Seventh Cause of Action: Violation of the Consumer Legal Remedies Act

Trader Joe's, Rainer, and Moya demur to this cause of action.

"Any consumer who suffers any damage as a result of the use or employment by any person of a method, act, or practice declared to be unlawful by Section 1770 may bring an action against that person." (Civ. Code, § 1780(a).) "The self-declared purposes of the act are to protect consumers against unfair and deceptive business practices and to provide efficient and economical procedures to secure such protection." (Gray v. Dignity Health (2021) 70 Cal.App.5th 225, 243 [cleaned up].)

Plaintiff fails to allege sufficient facts for this cause of action as alleged against Trader Joe's, Rainer, and Moya. Plaintiff fails to allege that Trader Joe's, Rainer, and Moya engaged in any actionable conduct under Civil Code section 1770. While the complaint alleges, in a conclusory fashion, unlawful conduct under Civil Code § 1770(a)(2), (5), (7), (14), (18), the complaint

fails to state how Trader Joe's, Rainer, and Moya made any specific misrepresentations that misled Plaintiff that would entitle her to relief under the Consumer Legal Remedies Act. (See Compl., ¶ 52.) Further, none of the 29 prohibited acts in Civil Code section 1770(a) address assault or battery. (See Civil Code §1770(a).)

Trader Joe's, Rainer, and Moya's demurrers as to this cause of action are sustained with leave to amend.

Disposition

Defendant Trader Joe's demurrer to Plaintiff's complaint is overruled as to the first, second, third, fourth, and fifth causes of action. It is sustained with 21 days' leave to amend as to the sixth and seventh cause of action.

Defendant Michael Rainer's demurrer to Plaintiff's complaint is overruled as to the first cause of action. It is sustained with 21 days' leave to amend as to the second, third, fourth, fifth, sixth, and seventh causes of action.

Defendant Patrick Moya's demurrer to Plaintiff's complaint is sustained with 21 days' leave to amend as to the second, sixth and seventh causes of action.

Defendants Trader Joe's and Michael Rainer's Motion to Strike Portions of Plaintiff Taylor Norris's Complaint

Defendants Trader Joe's and Michael Rainer move to strike 19 portions of Plaintiff's complaint. Each challenged portion pertains to Plaintiff's requests for punitive damages, attorney fees, or specific amounts of damages. Defendants also seek to strike Plaintiff's fifth, sixth, and seventh causes of action in their entirety.

Courts may strike allegations that are "not essential to the statement of a claim or defense," "neither pertinent to nor supported by an otherwise sufficient claim or defense," or "[a] demand for judgment requesting relief not supported by the allegations." (Code Civ. Proc., § 431.10(b).)

As an initial matter, the Court declines to strike Plaintiff's fifth, sixth, and seventh causes of action. The proper manner to attack this cause of action is via demurrer, not a motion to strike. "Where a whole cause of action is the proper subject of a pleading challenge, the court should sustain a demurrer to the cause of action rather than grant a motion to strike." (Quiroz v. Seventh Ave. Center (2006) 140 Cal.App.4th 1256, 1281.)

Punitive Damages

Defendants move to strike portions of the complaint regarding punitive damages. Courts may strike allegations related to punitive damages where the facts alleged "do not rise to the level of malice, oppression or fraud necessary" to recover punitive damages under Civil Code section 3294. (Turman v. Turning Point of Central California, Inc. (2010) 191 Cal.App.4th 53, 64.)

With one exception, the Court finds the motions to strike punitive damages is moot, for Plaintiff will be afforded leave to amend.

Regardless of how the complaint is amended, punitive damages are not recoverable under Plaintiff's negligence cause of action. Therefore, the Court will strike this allegation.

Attorney Fees

Defendants also argue that Plaintiff makes improper requests for attorney fees under her fifth, sixth, and seventh causes of action.

The motion is moot with respect to the fifth and seventh causes of action, for the Court will afford Plaintiff leave to amend those claims. The Court is not aware of any legal authority providing for recovery of attorney fees for the sixth cause of action, for violation of unfair competition law, nor does Plaintiff point to any. Regardless how that claim may be amended, the Court will strike the request for attorney fees under the unfair competition law cause of action.

Amount of Damages

Defendants argue that any allegations referencing an actual amount of damages contravenes the guideline set out in Code of Civil Procedure section 425.10(b). This guideline states: "where an action is brought to recover actual or punitive damages for personal injury or wrongful death, the amount demanded shall not be stated." (CCP § 425.10(b).) In opposition, Plaintiff argues that the inclusion of the amount is proper because she only includes the amount "for purposes of any future default proceeding." (Opp., at p. 11.)

The Court finds that CCP § 425.10(b)'s requirement does not consist of a carve-out for default judgment proceedings. A statement of damages is the appropriate means for specifying damages in a personal injury action. The Court will strike the allegations specifying an amount of damages sought.

Disposition

Defendants' motion to strike portions of Plaintiff's complaint is granted in part.

The Court hereby strikes the following allegations in Plaintiff's complaint: (1) the sentence "Accordingly, Plaintiff is entitled to punitive damages, according to proof." at paragraph 28; (2) the phrase "and attorney's fees" at paragraph 50; and (3) the phrase "which for the purposes of any future default proceedings shall not exceed \$1,000,000.00" at prayer, paragraphs 1-6, and 8-9.